

23CMCV01492 23CMCV01492

County: los-angeles

Division: Civil Law and Motion

Department: A

Hearing date: 2026-06-29

Motion: DEFENDANT JONATHON I. SON'S MOTION FOR SUMMARY ADJUDICATION

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=COM%2CA%2C06%2F29%2F2026

Source SHA-256: 1b3abfe15edcf5f64eb9a933a28e9045fdc7a3471b33aeed29b90af277614021

Case Number: 23CMCV01492 Hearing Date: June 29, 2026 Dept: A

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES – SOUTH CENTRAL DISTRICT

YOLANDA ELLIOTT,

Plaintiff,

vs.

SENT-PAC

CORPORATION, et al.,

Defendants.

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

)

CASE NO: 23CMCV01492

[TENTATIVE]

ORDER RE: DEFENDANT JONATHON I. SON'S MOTION FOR SUMMARY ADJUDICATION

Dept.

A

DATE:

June 29, 2026

TIME:

8:30 A.M.

COMPLAINT

FILED: 09/15/2023

TRIAL:

10/28/2026

MOVING PARTY: Defendant

Jonathon I. Son dba JC Galaxy Security

RESPONDING PARTY: Plaintiff

Yolanda Elliott

1. Background

This is an action for battery. Plaintiff Yolanda Elliott alleges that on September 30, 2021, Plaintiff was present at the Del Amo Swapmeet business establishment located at 2787 E. Del Amo Blvd., Rancho Dominguez, CA 90221 (the "Property"). Plaintiff alleges that she was confronted by a security guard while present on the Property, and that, unprovoked, the security guard shoved Plaintiff down a flight of stairs, causing Plaintiff personal injury. Plaintiff alleges that defendant Sent-Pac Corporation employed and/or contracted with defendant Jonathon I Son dba JC Galaxy Security ("JC Galaxy") to provide security services at the Property.

2. Evidentiary Objections

Elliott objects to portions of the declarations of Jonathon I. Son and Brian P. Stewart. The court overrules objections 1-14.

3. Discussion

JC Galaxy moves for summary adjudication of Plaintiff's claims for punitive damages and negligent hiring, retention, and supervision. JC Galaxy contends that the security guard, Alexander Rhodes, had a long history of working at the Property without issue and therefore JC Galaxy had no reason to believe that Rhodes was anything other than an experienced and professional security guard. In opposition, Plaintiff contends that JC Galaxy ratified Rhodes' conduct and that it conducted no training of Rhodes or investigation into his history as a security guard when it hired him.

On June 18, 2026, District filed a reply separate statement prohibited under Code of Civil Procedure § 437c, subd. (b)(4). The court will therefore not consider it.

The purpose of

a motion for summary judgment or summary adjudication “is to provide courts with a mechanism to cut through the parties’ pleadings in order to determine whether, despite their allegations, trial is in fact necessary to resolve their dispute.” (Aguilar v. Atlantic Richfield

Co. (2001) 25 Cal.4th 826, 843 (Aguilar).)

“Code of Civil Procedure section 437c, subdivision (c), requires the trial judge to grant summary adjudication if all the evidence submitted, and ‘all inferences reasonably deducible from the evidence’ and uncontradicted by other inferences or evidence, show that there is no triable issue as to any material fact and that the moving party is entitled to judgment as a matter of law.” (Adler v. Manor Healthcare Corp. (1992) 7 Cal.App.4th 1110, 1119.)

“On a motion

for summary [adjudication], the initial burden is always on the moving party to make a prima facie showing that there are no triable issues of material fact.” (Scalf v. D.B. Log Homes, Inc.

(2005) 128 Cal.App.4th 1510, 1519.) A

defendant or cross-defendant moving for summary adjudication “has met his or her burden of showing that a cause of action has no merit if the party has shown that one or more elements of the cause of action . . . cannot be established, or that there is a complete defense to the cause of action.” (Code Civ. Proc., § 437c, subd. (p)(2).)

“Once the

defendant or cross-defendant has met that burden, the burden shifts to the plaintiff or cross-complainant to show that a triable issue of one or more

material facts exists as to the cause of action or a defense thereto.” (Code Civ. Proc., § 437c, subd. (p)(2).) “If the plaintiff cannot do so, summary [adjudication]

should be granted.” (Avivi v. Centro

Medico Urgente Medical Center (2008) 159 Cal.App.4th 463, 467.) “When deciding whether to grant summary [adjudication], the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (Id. at p. 467; Code Civ. Proc., § 437c, subd. (c).)

To establish a

triable issue of material fact, the party opposing the motion must produce

substantial responsive evidence. (Sangster v. Paetkau (1998) 68 Cal.App.4th 151, 166.) A triable issue of material fact exists only if the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion. (Falcon v. Long Beach Genetics, Inc. (2014) 224 Cal.App.4th 1263, 1271.)

a. Punitive
Damages

JC Galaxy

moves for summary adjudication of Plaintiff's claim for punitive damages. JC Galaxy contends that, as a corporate entity, it may not be held liable for punitive damages because it did not have advance knowledge of Rhodes' unfitness and, as its sole corporate officer was not present at the time of the incident, it could not have ratified or authorized Rhodes' conduct. In opposition, Plaintiff contends that JC Galaxy failed to take any corrective or disciplinary action against Rhodes, thereby ratifying his conduct.

A request for punitive damages requires a showing that the defendant has been guilty of oppression, fraud or malice. (Civ. Code § 3294, subd. (a).)¿¿¿

"Malice is

defined in the statute as conduct intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others." (College Hospital, supra, 8 Cal.4th at p. 725 [examining Civ. Code, § 3294, subd. (c)(1)].) "A conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code. In order to justify an award of punitive damages on this basis, the plaintiff must establish that the defendant was aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences."¿(Taylor v. Superior Court (1979) 24 Cal.3d 890, 895-896.)¿

"As amended to

include [despicable], the statute plainly indicates that absent an intent to injure the plaintiff, 'malice' requires more than a 'willful and conscious' disregard of the plaintiffs' interests.¿The additional component of 'despicable conduct' must be found."¿(College Hospital, supra, 8 Cal.4th at p. 725.)¿The statute's reference to despicable conduct represents a "new substantive

limitation on punitive damage awards." (Ibid.) Despicable conduct is "conduct which is so vile, base, contemptible, miserable, wretched or loathsome that it would be looked down upon and despised by ordinary decent people." Such conduct has been described as 'having the character of outrage frequently associated with crime.' " (Tomaselli v. Transamerica Ins. Co. (1994) 25 Cal.App.4th 1269, 1287 (Tomaselli).) Despicable conduct is most often found in cases involving intentional torts rather than unintentional torts, such as vehicle collisions. (Lackner v. North (2006) 135 Cal.App.4th 1188, 1212.)

JC Galaxy

contends that Rhodes' conduct did not rise the level of malice as required for a showing of punitive damages. However, JC Galaxy did not cite to any evidence in its separate statement in support of this contention. Furthermore, even if JC Galaxy had cited to Rhodes' incident report stating that he pushed Elliott in response to her attempting to grab and push him (Son Decl., Ex. A), Elliott provided her deposition testimony alongside her opposition, in which he states that Rhodes pushed her down a flight of stairs unprovoked after she asked him not to touch her. (Elliott Depo. 16:3 – 16:13.) A reasonable trier of fact could find that Rhodes engaged in despicable conduct with a willful and conscious disregard for Elliott's safety, such that there is a triable issue of material fact as to the issue of whether Rhodes' conduct rose to the level of malice.

"[T]he imposition of punitive damages upon a corporation is based upon its own fault. It is not imposed vicariously by virtue of the fault of others." (City Products Corp. v. Globe Indemnity Co. (1979) 88 Cal.App.3d 31, 36.) "Corporations are legal entities which do not have minds capable of recklessness, wickedness, or intent to injure or deceive. An award of punitive damages against a corporation therefore must rest on the malice of the corporation's employees. But the law does not impute every employee's malice to the corporation. Instead, the punitive damages statute requires proof of malice among corporate leaders: the 'officer[s], director[s], or managing agent[s].' " (Cruz v. Home Base (2000) 83 Cal.App.4th 160, 167 [citation omitted].)

Corporate

ratification of malice is generally shown where "the employer demonstrates an intent to adopt or approve oppressive, fraudulent, or malicious behavior by an employee in the performance of his job duties." (College Hospital Inc. v. Superior Court (1994) 8 Cal.4th 704, 726.) This may occur where the

corporation's managing agent knows of the misconduct at issue and fails to investigate, discipline, or discharge the errant employee. (Ibid; C.R. v. Tenet Healthcare Corp. (2009) 169 Cal.App.4th 1094, 1111.) It therefore may occur after the incident in question.

JC Galaxy

contends that its CEO, Jonathon I. Son, could not have ratified or authorized Rhodes' conduct because he was not there at the time. However, a corporation may ratify or authorize an employee's conduct in advance or retroactively without a managing agent being present at the time of the incident. JC Galaxy provides no evidence that Jonathon I. Son or any other managing agent did not, at some time before or after the incident, authorize or ratify Rhodes' conduct during the incident. JC Galaxy also provides no evidence tending to show that Plaintiff cannot provide evidence of such. Although Son declares that he had never met Elliott before or after the incident, and that he was not present at the Property on the date of the incident and was unaware of it until a report was presented to him, this does not constitute evidence that he or any other managing agent did not authorize or ratify Rhodes' conduct at some other time.

As such, JC

Galaxy has failed to carry its burden to establish that there are no triable issues of material fact as to the issue of Plaintiff's claim for punitive damages. The court will deny JC Galaxy's motion for summary adjudication as to this claim.

b.

Negligent hiring, supervision, and retention

"Under

California law, an employer may be held directly liable for the behavior of an unfit employee where the employer was negligent in the hiring, training, supervising, or retaining of that employee. [Citation.] Negligence liability will be imposed upon the employer if it knew or should have known that hiring the employee created a particular risk or hazard and that particular harm then materializes." (Doe v. Uber Technologies, Inc. (N.D. Cal. 2016) 184 F.Supp.3d 774, 788.)

JC Galaxy

contends that it had no advance knowledge of Rhodes' unfitness for the job of security guard and should not have had that knowledge. In support of this

contention, JC Galaxy provides the declaration of Jonathon I. Son, who states that during the hiring process, "Thomas Kim, the Manager of Del Amo Plaza recommended that JSGS hire Alexander Rhodes. Mr. Rhodes was already working security at the Del Amo Plaza, and Mr. Kim was satisfied with his work as a security officer." (Son Decl. ¶ 12.) JC Galaxy also provides evidence that Rhodes was, as of the date of the incident, licensed as a security guard by the Bureau of Security and Investigative Services. (Son Decl., Ex. B.) JC Galaxy provides the declaration of Thomas Kim, the manager of the Property, who states that he has never received a complaint from a customer about a security guard's use of force at the Property, outside of the incident. (Stewart Decl., Ex. F., 99:1 – 99:6.)

This is sufficient to carry JC Galaxy's burden to establish that there are no triable issues of material fact as to Plaintiff's claim for negligent hiring, supervision, and retention, and that it is entitled to judgment as a matter of law. The burden now shifts to Plaintiff.

In opposition, Plaintiff contends that JC Galaxy did not conduct any background check on Rhodes prior to hiring him, and that if it had, it would have discovered that his license to operate as a security guard had at one point been suspended due to reports of domestic abuse. Plaintiff also contends that JC Galaxy did not provide Rhodes with any training, testing, or instruction.

Plaintiff provides the deposition testimony of Jonathon I. Son, who states that he did not conduct any background check of Rhodes before hiring him. (Son Depo. 61:14 – 61:18.) Son also states that JC Galaxy provided no training to Rhodes on the issues of deescalation or use of force. (Son Depo. 65:7 – 65:13.)

Based on the provided evidence, a reasonable trier of fact could find that JC Galaxy failed to conduct a background check on Rhodes, should have conducted a background check on Rhodes, and would have discovered that Rhodes was unfit had it done so. A reasonable trier of fact could therefore find that JC Galaxy negligently hired, supervised, trained, or retained Rhodes based on this and based on its failure to provide Rhodes with any training on deescalation or use of force. Plaintiff has therefore shown the existence of a triable issue of material fact as to her claim for negligent hiring, supervision, and retention.

As such, the
court will deny JC Galaxy's motion for summary adjudication as to this claim.

4. Conclusion

Based on the
foregoing, the court DENIES JC Galaxy's motion for summary adjudication.

JC Galaxy is ordered to give notice.

IT IS SO ORDERED.

DATED: June 29, 2026

Hon. Elizabeth L. Bradley

Judge of the Superior Court